

HOUSE BILL 2016

By Cochran

AN ACT to amend Tennessee Code Annotated, Title 8 and
Title 50, relative to employment-related mental
health evaluations.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 50, Chapter 1, Part 3, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Employee" means an individual who performs services for an
employer for valuable consideration, and does not include a self-employed
independent contractor; and

(2) "Employer" means an individual or entity that employs one (1) or
more employees and includes this state and political subdivisions of this state.

(b) An employer that requires an employee or prospective employee to submit to
a mental health evaluation as a condition of employment or prospective employment
shall grant the employee or prospective employee reasonable access to the results of
the evaluation, including any report from a mental health professional or other evaluator.
The employer may require that such access be during normal business hours.

(c) An employee who is denied access to a mental health evaluation as provided
in subsection (b) may bring a private cause of action against the employer for
declaratory or injunctive relief. A court shall award to an employee who prevails in such
action reasonable court costs and attorney fees.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.